CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, January 9, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, January 9, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: City Manager Yvette Harrell, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commissioner Burke recognized Alfonso and Natasha Ervin on their 30th Wedding Anniversary.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-3 (Commissioner Burke); pulled 13-4 (Vice Mayor Davis).

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes

Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – October 24, 2018

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the minutes from the Regular Commission Meeting of October 24, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – November 29, 2018

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the minutes from the Special Commission Meeting of November 29, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said the Mom and Pop Grant Program will be announced in the near future and he will bring forth the information at that time.

Cedric Brazle, Commissioner Jean Monestime's Office, District II, announced that the Mom and Pop Grant Program for small businesses is now available for District II.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Toroni Mitchell, 14225 NW 22nd Place, Opa-lock, FL, said county workers were working on 22nd Avenue and discovered her mother's water meter there. A worker came to retrieve the serial number from the meter at her mother's house to determine whose meter she has. She asked the commission what will be done about this and also asked that the City looks into whether she and her mother are receiving accurate bills.

Dorothy Johnson, 13724 NE 22nd Place, Opa-locka FL, asked that any additional information added to the agenda after it is advertised be provided to the public at the meeting. She asked that any member of the commission who has served be acknowledged by their title after they have left office.

Commissioner Kelley asked the manager to ensure there is a follow up on the concerns of all of the citizens; this has not been practiced in the past.

12. ACTION ITEMS:

1 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHOROIZING THE BROWN LAW GROUP, LLC, TO REPRESENT THE CITY OF OPA-LOCKA IN KRAVICH VS. CITY OFOPA-LOCKA, FLORIDA ET. AL., CASE NUMBER 2018-039141 CA-27; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said everyone knows how he feels about litigation that does not have a cap on it; it becomes costly and the City ends up spending too much money. He proposed amending the resolution to include a two thousand dollar ($2,000.00) cap after which the attorney has to bring the item back to the commission for consideration.

It was moved by Commissioner Kelley, seconded by Commissioner Bass to amend the resolution.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE ISSUANCE OF A REQUEST FOR PROPOSAL (RFP) SEEKING A FIRM TO SERVE AS CITY ATTORNEY FOR THE CITY OF OPA-LOCKA; FURTHER AUTHORIZING THE ESTABLISHMENT OF A COMMITTEE TO REVIEW AND MAKE RECOMMENDATIONS TO THE CITY

COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Burke*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Vice Mayor Davis asked that the item be tabled and revisited at a later date so that supporting documentation can be provided to make a sound decision.

Commissioner Burke said the Brown Law Group's contract ends in February and there is a clause that would automatically renew it if no one is in place when it ends. He would like to put out an RFP to obtain an in-house attorney who will devote 100% of their time to the City. He is going to proceed with the item as is.

Mayor Pigatt asked the audience to refrain from making comments while the commission is in discussion.

Commissioner Kelley proposed an amendment to bring back an RFP at a special meeting on next week to advertise the city attorney position.

Mayor Pigatt asked that the item be deferred until a later date as he has many concerns. While he understands the intention behind it, he would like to secure outside legal counsel to oversee the process at no cost to the City. He said he has consulted with numerous local officials and there are four attorneys willing to assist the City.

Commissioner Burke reminded the mayor that when he ran, he ran on change and there is no need in the City holding on to the past. He will take Commissioner Kelley's amendment, but he is moving forward with item; he is ready to vote.

Mayor Pigatt said that while he understands Commissioner Burke, as the chair, he is making a motion to defer the item until next week.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley told the mayor he can bring up his concerns and request those attorneys at next week's meeting. He also went out and talked to other officials and found attorneys as well.

Vice Mayor Davis said the resolution speaks to a firm as opposed to an individual and that should be changed.

Commissioner Bass asked the mayor why both of the items cannot be decided on at the same time next week.

Mayor Pigatt said he would like for independent counsel to be in attendance to advise the commission beforehand so they are informed on how to make the right decisions.

Commissioner Burke said he does not see a reason to defer and wants to move forward.

It was moved by, seconded by to pass the amendment.

There being no further discussion, the motion on the amendment failed by a 3-2 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	No
Mayor Pigatt	Yes

There being no discussion, the motion on the resolution passed by a 3-2 vote.

Commissioner Burke	Yes
Vice Mayor Davis	No
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PREPARE AND PRESENT AN APPROPRIATIONS PROJECT REQUEST FOR FISCAL YEAR 2019-2020; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A CONSENT AGREEMENT WITH THE MIAMI-DADE DEPARTMENT OF REGULATORY AND ECONOMIC RESOURCES, DIVISION OF ENVIRONMENTAL RESOURCES MANAGERMENT (DERM), SUBSTANTIALLY IN THE FORM ATTACHED AND ACCEPTABLE TO THE CITY ATTORNEY, TO RESOLVE ALLEGED VIOLATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolutions were read by City Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to pass the resolutions.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said the state has approved the budget and the City can now begin utilizing the funds that were allocated.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

MAYOR

ATTEST:

CITY CLERK